

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403

Meeting ID: 161 463 0304

Passcode: 114482

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPtFQ2hTaEFuZnhIZz09>

Department 404

Meeting ID: 161 305 3325

Passcode: 282709

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9wckJSNnJwSSSttYkR6dz09>

Department 414

Meeting ID: 161 123 0725

Passcode: 040696

You can also log into your hearing **directly** using the link below:

<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

ALEKSANDR RATNER,

Respondent

) Case Number: FCS-15-351011

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) On for hearing is Respondent (Father)'s Order to Show Cause and Affidavit for Contempt, filed 5/4/2026, alleging that Other Party (Mother) violated the Findings and Order After Hearing filed 4/8/2022. Father alleges that Mother moved out of state on 9/1/2023 and took the parties' child (Maria, DOB: 1/16/2014, age 12) out of her school (despite joint legal custody orders) without Father's permission and Father has not been able to exercise his Court-ordered visitation. Father states Mother has also not updated her contact information with the Court.
- 2) There is no Proof of Service on file evidencing service of Father's Order to Show Cause and Affidavit for Contempt. Therefore, this hearing is continued to **Thursday, 9/24/2026 at 9:00 AM in Dept. 404.**
- 3) At least 16 Court days prior to the next hearing date, Father must have a third party age 18 years of age or older personally serve on Mother: (a) the Order to Show Cause and Affidavit for Contempt filed 9/29/2023, (b) the Tentative Ruling Instructions, and (c) a copy of this order for continuance (which will be mailed to Father) so that Mother has notice of the new hearing date.
- 4) This is Father's third Order to Show Cause Re: Contempt on this issue. The prior Orders to Show Cause Re: Contempt were denied without prejudice due to lack of service. Father is strongly

1 encouraged to seek assistance from the ACCESS Center to prevent further delay. Information for
2 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
3 [center](https://sf.courts.ca.gov/access-legal-self-help-center).

4 5) The Court will prepare the Findings and Order After Hearing.
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

KENNETHAN BAIRD,

Respondent

) Case Number: FCS-17-352589

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING: COMPLIANCE REVIEW REGARDING CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner County of San Francisco, Respondent Kennethan Baird (Father), and Other Parent Bobbie Grayson (Mother). The parties have one minor child, Kayla (DOB: 5/17/2015, age 10). Both parties are self-represented.
- 2) On 5/12/2025, the Court entered a Findings and Order Regarding Contempt. The Court found Father to be in contempt on various counts and sentenced Father to 50 hours of community service, with the sentence suspended for a period of 8 months. The Court also ordered Father to pay Mother \$80 per month for 8 months (commencing 6/1/2025) regarding an unpaid and owed amount of \$637.04. The Court further ordered Father to comply with all terms of the Court's custody and visitation order filed 5/12/2025. The Court set a compliance review hearing for 2/3/2026, which was later continued to 3/17/2026 upon request for Mother.
- 3) On 3/9/2026, Mother filed a Declaration. Mother stated Father has paid no payments towards the outstanding \$637.04 due. Mother asked the Court to enforce this order and include the accrued

1 legal interest as previously ordered. Mother also described ways in which Father had not
2 complied with the prior orders regarding custody and visitation.

3 4) Per the Proof of Service filed 5/9/2026, Mother's Declaration was emailed to Father on 3/6/2026.

4 5) Father failed to appear at the prior 3/17/2026 hearing date, and so the hearing was continued to
5 4/7/2026.

6 6) At the 4/7/2026 hearing, Mother appeared and Father did not. The Court took the matter under
7 submission and then issued the Findings and Order After Hearing filed 5/4/2026, wherein the
8 Court found that Father owes to Mother the full unpaid sum of \$637.04 plus interest in the
9 amount of \$300.05, for total principal and interest due of \$937.09. The Court ordered Father to
10 pay this amount to Mother in full no later than 5/30/2026. The Court also lifted the suspension of
11 Father's sentence and ordered Father to complete 50 hours of community service no later than
12 8/30/2026. The Court set a future hearing date of 6/9/2026 for Father to explain which
13 community service provider he planned to perform community service for.

14 7) At the prior 6/9/2026 hearing, both Mother and Father appeared. Judge Chan issued the Findings
15 and Order After Hearing filed 6/20/2026 which contains the following orders. Father shall pay
16 Mother \$937.09. Upon proof that he has made the full payment, the Court will waive the 50 hours
17 of community service previously ordered. Judge Chan set a future hearing date of 7/9/2026 for
18 proof of compliance. Judge Chan noted that if Father has complied, his appearance at the
19 7/9/2026 hearing may be waived.

20 8) On 7/1/2026, Mother filed a declaration stating that Father has paid her the \$937.09. However,
21 Mother details concerning allegations regarding Father's failure to pick up Kayla for a visit on
22 6/12/2026 as well as Father becoming very angry and physically abusive with Kayla after she told
23 him she did not want to go with him for a visit on 6/26/2026. Mother writes, "Yes he has paid the
24 monies of \$937.09 as of 6/26/2026 however no amount of money compensates the ongoing
25 emotional, mental, anguish our daughter endures."

26 9) The Court notes that on 7/1/2026, Mother filed an ex parte Request for Order seeking custody and
27 visitation orders.
28
29

1 **B. Findings and Order**

- 2 1) The Court finds that Father has complied with its prior order requiring him to pay Mother
3 \$937.09. The Court makes no further orders regarding this issue and the Court hereby waives the
4 50 hours of community service previously ordered.
- 5 2) Regarding Mother's allegations and requests related to custody and visitation, the Court will
6 address these concerns at the upcoming hearing on 9/15/2026.
- 7 3) The Court will prepare the Findings and Order After Hearing.
- 8
- 9
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28
- 29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MANUEL ISACC SUAREZ,

Petitioner

VS.

MARIA RADWICK,

Respondent

) Case Number: FPT-24-378517

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME); MODIFICATION OF EXISTING ORDER DATED: JUNE 2, 2025

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Manuel Isacc Suarez (Father) and Respondent Maria Radwick (Mother) have one minor child together, Oshan (DOB: 8/28/2017, age 8). Pursuant to a Findings and Order After Hearing (FOAH) filed 6/2/2025, the parties share joint legal and physical custody of Oshan, with Father having parenting time as follows: (a) Sunday at 6:30PM to Wednesday school drop-off (or 4PM if school if not in session) during the school year; and (b) week-on, week-off schedule during summer break and travel time for both parties. The 6/2/2025 FOAH also contains orders relating to parenting time during other holidays and school breaks.
- 2) On for hearing is Mother's request filed 4/3/2026 in which she seeks a change in custody and parenting time on several grounds, including Father's concealment of his inappropriate housing situation, his ongoing instability, his failure to provide Oshan with adequate care, emotional

support, basic necessities, and timely and regular attendance at school and extracurricular activities, the fact that Mother has had de facto 80% custody of Oshan since the 6/2/2025 order and 100% custody of him since December 2025, and Oshan's wishes to have less time with Father. Mother seeks an order for sole legal and physical custody of Oshan, with parenting time for Father on Saturday or Sunday, from 1PM to 6PM during school weeks and during school breaks when Mother is not traveling with Oshan. She also seeks an order allowing her to travel with Oshan to Bulgaria for up to one month during summer break (instead of the current order permitting her to travel with him to Bulgaria for 2 weeks).

3) On 6/24/2026, Father filed a response in which he seeks to maintain joint legal and physical custody, with a temporary change to his parenting time. He states that Mother stopped his visits and that he has not been able to see Oshan since December 2025. He states he is intimidated by Mother because she is a lawyer. He states that her request contains inaccurate and misleading statements and presents incomplete facts. He states he would like the custody exchanges to occur in a public area such as the local park.

4) On 7/1/2026, Mother filed a reply in which she states (and provides exhibits to show) that she told Father on several occasions that he can let her know in writing if he wishes to resume his parenting time, and that he never did so. She sets forth additional information regarding Father's living situation.

5) On 7/7/2026, Father filed a declaration in which he states the parties had an agreement to temporarily change the parenting time order to allow Oshan live with Mother while Father searched for a new home. He states he understood this arrangement to be temporary, but that when he told Mother that he wanted to resume visits, Mother told him he had to wait 30 days. He disputes many of the other statements Mother has made.

B. Findings and Orders

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

1 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in**
2 **Department 404.**
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GEOFFREY JAMES WALKER,

Petitioner

VS.

KATHERINE THERESA MCFARLIN,

Respondent

) Case Number: FPT-26-378831

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW OF SUPERVISED VISITATION

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Geoffrey James Walker (Father) and Respondent Katherine Theresa McFarlin (Mother) have one minor child together, Riley (DOB 9/9/2022, age 3).
- 2) On 1/28/2026, Father filed a petition to establish parental relationship and a request for custody and parenting time orders. He stated in his declaration that the parties lived together until 2023 when Mother moved out due to Father's drinking problem. Father stated he had been sober for about 9 months and was attending about 10 AA meetings per week.
- 3) On 2/11/2026, Mother filed a response stating Riley had had no contact with Father for 2.5 years. She stated that Father abused alcohol during their relationship and lied about it, and also lost his job. Mother did not believe Riley would be safe in Father's care because Father drove with Riley in the car while he was intoxicated, caused damage to their car, picked her up 30 minutes late from daycare under the influence of alcohol, fell into a shattered mirrored closet next to their bed,

1 fell into and broke a toilet causing flooding in the apartment, called Mother insulting names, sent
2 inappropriate text messages, spent rent money on other things, refused treatment or AA meetings,
3 and never took accountability for his actions. Mother stated that Father had not maintained stable
4 housing, lived in an inpatient rehabilitation facility, and continued to be unemployed.

5 4) On 2/25/2026, Father filed a reply in which he denied many of Mother's statements and explained
6 that their car was damaged due to their narrow garage, not alcohol. Father stated he was sober
7 since May 2025 and lived in a sober living home that supported his continued recovery. Father
8 stated he was willing to submit to alcohol testing at any time.

9 5) On 4/3/2026, the parties stipulated that Mother would have sole legal and physical custody and
10 that Father would have supervised visits through Rally Family Visitation Services (Rally) twice
11 per month, with Father to pay Rally's fees. The parties agreed that Father shall submit to
12 breathalyzer testing 2 days before each visit and shall submit to random drug testing. The matter
13 was set for a review hearing on 7/9/2026.

14 **B. Findings and Orders**

15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.

19 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/9/2026 in**
20 **Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE ANTONIO AYON BRAVO,

Petitioner

VS.

PARIS E CARR,

Respondent

) Case Number: FMS-24-387539

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jose Antonio Ayon Bravo (Father) and Paris E. Carr (Mother) have one minor child together, Isela (DOB 10/1/2022, age 3).
- 2) In a Stipulation and Order filed 1/22/2025, the parties agreed to share joint legal and joint physical custody of Isela, that Father shall have parenting time every Saturday at 8PM to Tuesday at 9AM, and that the parties shall work together to create a holiday schedule.
- 3) On 2/24/2026, Father filed a request to modify his parenting time to every Saturday at 8AM to Sunday at 8PM. At a 4/30/2026 hearing, the Court ordered that beginning 5/4/2026, Father shall have overnight visitation every week from Monday at noon (school pick up) until Tuesday at noon (school drop off), and that the parties can agree to additional parenting time for Father. The Court scheduled a review hearing for 7/9/2026 and ordered the parties to file update declarations by 6/25/2026.

1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court has not received update declarations or any new information from either party. The
7 Court maintains the current custody and parenting time order. If either party has any requests for
8 changes to the current order, they may file a new request for order.
- 9 3) The Court will prepare the Findings and Order After Hearing.
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28
- 29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GREGORY A. AUSTIN,

Petitioner

VS.

TAMMY MILLER-AUSTIN,

Respondent

) Case Number: FDI-14-780775

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: DEFAULT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Gregory Austin (Husband) and Respondent Tammy Miller-Austin (Wife) married on 10/7/1995 and separated on 10/8/2013, for a marriage of 18 years. The parties have an adult child, Martin (DOB: 3/26/1998, age 28). Both parties are self-represented.
- 2) On 2/5/2014, a Domestic Violence Restraining Order After Hearing was granted against Husband for the protection of Wife and the parties' child. That restraining order was originally set to expire on 9/30/2016, but it has been renewed twice, on 8/24/2016 and again on 11/17/2021. The restraining order is currently set to expire on 11/17/2026.
- 3) On 10/30/2017, a Judgment was entered following a trial before the Honorable Judge Wiley. Both parties appeared at trial. The Judgment provides in relevant part:
 - a. The marital residence located at 2506 23rd Avenue San Francisco, CA 94711 was awarded to Wife and Wife was ordered to pay Husband an equalizing payment of \$179,038.23

- 1 b. The parties shall retain Moon Schwartz & Madden to prepare QDROs to divide the
2 community interest in Wife's VALIC retirement account (which had a date of separation
3 cash value of \$9,428.55) and Husband's retirement accounts with St. Mary's,
4 Presbyterian Medical Center, and Dignity Health
- 5 c. Husband's request for permanent spousal support is denied
- 6 4) No pleadings were filed in this matter between the date the restraining order was renewed on
7 11/17/2021 and the date Husband filed the instant Request for Order.
- 8 5) Now on for hearing is Husband's Request for Order filed 5/11/2026. Husband states Wife
9 breached her fiduciary duties to him by failing to divide retirement accounts by QDRO, failing to
10 disclose "probate of acquired property 2636 W Pratt Blvd. Chicago, IL," distributing funds to
11 their adult son for undergraduate and / or graduate degrees and for housing, and illegally utilizing
12 the basement of the former marital residence to earn rental income. Husband also argues that the
13 prior restraining order violates his freedom of speech, right to bear arms, and right to free
14 association and free assembly and that Wife and their son are "accomplices" to the illegal
15 appropriation of his "legal and registered firearms." Husband states he has suffered \$3,117,000 in
16 damages. Husband asks the Court to:
- 17 a. Reverse the restraining order and instead issue "a similar restraining order against spouse
18 and son as restrained parties with CLETS"
- 19 b. Reimburse him for child support
- 20 c. Give Husband temporary exclusive use, possession, and control of 2506 23rd Avenue
21 San Francisco, CA 94711
- 22 d. "forensic financial reporting fees, return of firearms, court fees, remand to U.S. District to
23 investigate firearms / inheritance fraud"
- 24 e. Award Husband \$3,117,000 for damages
- 25 f. Admonish Court's officers
- 26 g. Transfer all family real estate titles to Husband's name
- 27 h. Order jail time for Wife and the parties' son
- 28 6) On 6/22/2026, Wife filed a Responsive Declaration asking that the Court dismiss Husband's
29 Request for Order for "failure to state a claim." Wife states she paid Husband the \$179,039.23 net

1 equalizing payment on or about 11/21/2017 and Husband signed an Interspousal Transfer Deed
2 granting Wife the property located at 2506 23rd Avenue San Francisco, CA 94711 as her sole and
3 separate property. Wife also states that in October 2017, her former attorney attempted to finalize
4 the division of the parties' retirement accounts using Moon Schwartz and Madden, but MSM
5 could not complete the QDROs because Husband failed to provide the information for all of his
6 retirement plans. Wife states Husband's motion is a continuation of the physical and emotional
7 abuse that caused her to obtain a restraining order. Wife asks the Court to dismiss Husband's
8 Request for Order in full with prejudice.

9 7) Per the Proof of Service filed 6/22/2026, Wife's Responsive Declaration was mailed to the
10 address the Court has on file for Husband on 6/20/2026.

11 8) Husband did not file a Reply Declaration.

12 **B. Findings and Order**

13 1) The Court finds that Husband has not met his burden of establishing good cause for the requested
14 relief. Husband's Request for Order is denied.

15 2) The Court will prepare the Findings and Order After Hearing.

16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIN YUAN ("JOANNE") LIN,

Petitioner

VS.

WING KWONG QUOCK,

Respondent

) Case Number: FDI-23-797584

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: AUTHORIZATION TO TRAVEL INTERNATIONALLY AND APPLY
& OBTAIN CURRENT PASSPORTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Min "Joanne" Lin (Mother) and Respondent Wing Quock (Father) have two minor children together, Hannah (DOB 12/6/2012, age 13) and Sophia (DOB 6/20/2015, age 11).
- 2) On 3/15/2023, a 3-year domestic violence restraining order (DVRO) was entered to protect Mother and the children against Father.
- 3) On 3/10/2026, pursuant to a stipulated agreement of the parties, an order to renew DVRO was filed extending the expiration date of the DVRO to 3/15/2031. On 6/10/2026, the parties stipulated that Father's professionally supervised visits, which occur every Sunday from 9AM to 11:30AM, shall be unsupervised beginning 6/1/2026, and that the parties shall communicate through Our Family Wizard in a brief and peaceful manner, and only about issues relating to visitation and exchanges of the children.
- 4) On for hearing is Mother's request filed 4/14/2026 for court authorization for her to renew the children's passports and travel with them internationally. She states that Father is withholding his

1 consent to renew the passports without good reason. She states that she wishes to take the
2 children to Taiwan to visit their relatives; she “would be happy to provide [Father] with 21 days’
3 advance written notice of any anticipated international travel (or as much as possible in cases of
4 emergency), round-trip flight information and copies of tickets, destination(s), lodging, and
5 emergency contact details. Additionally, I propose that [Father] have make-up time with the
6 children should any travel interfere with [his] scheduled visits.”

- 7 5) Father filed a declaration on 7/6/2026 in which he states that he wishes to clarify his position
8 regarding the passports and out-of-state travel. He states: “I am simply asking that the existing
9 consent process remain in place so that I receive sufficient information to make an informed
10 decision regarding any proposed international travel and can maintain reasonable contact with my
11 daughters while they are traveling.” He would like any orders relating to international travel to
12 require the other party’s consent and to include the following conditions: (a) at least 21 days’
13 advance written notice of any intended travel, with the notice to include the proposed travel dates,
14 destination, return flight information, and emergency contact information; (b) reasonable make-
15 up time for any missed parenting time; and (d) two video or telephone calls each week for the
16 non-traveling parent, with each call lasting approximately 30 minutes. He states as to travel to
17 Taiwan that he “remain[s] willing to consent to [Mother] traveling with the children to Taiwan
18 and to execute any documents necessary to renew their passports. My only request is that, before
19 I am asked to provide that consent, I be given the basic information necessary to make an
20 informed decision. . . .”

21 **B. Findings and Orders**

- 22 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
23 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
24 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
25 children is the United States.
- 26 2) Father shall fully and timely—i.e., within 7 days of any request by Mother—cooperate in signing
27 and executing all necessary documents for the renewal of the children’s passports. If Father fails
28 to fully and timely cooperate, Mother may file an ex parte request asking the Court to appoint the
29

1 Clerk of the Court or the Clerk's Designee as elisor to sign any such documents and shall attach
2 to any such ex parte request a copy of the documents that require Father's signature.

3 3) The Court maintains the current order requiring the parties to obtain consent or a Court order for
4 international travel. At least 21 days before any anticipated international travel, Mother shall
5 provide Father with basic information regarding her proposed travel—travel dates, roundtrip
6 flight information, destination(s), lodging, and emergency contact information. Father shall be
7 entitled to make-up time for any missed parenting time due to travel, and shall also be entitled to
8 two video or telephone calls per week with the children during travel, with each call lasting at
9 least 15 minutes. Father shall not unreasonably withhold consent to Mother's request to travel. If
10 Father does not consent to the proposed travel after proper notice of the anticipated international
11 travel is provided, Mother shall seek a Court order for the travel before she may travel with the
12 children.

13 4) All other orders not in conflict with these orders shall remain in full force and effect.

14 5) The Court will prepare the Findings and Order After Hearing.

15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is self-represented.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. Judge Wiley found these unilateral transfers to be void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.

5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.

6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.

7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:

- a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
- b. Determine Mother's inability (not refusal) to comply;
- c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- 1 d. Bar enforcement or sanctions as to those provisions during the appeal.
- 2 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's
- 3 12/17/2025 Request for Order and made the following findings and orders:
- 4 a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or
- 5 transfer to Father life insurance policies with an equivalent cash value or a combination
- 6 of money and policies" is a money judgment under Code of Civil Procedure section
- 7 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for
- 8 a stay of enforcement of this provision.
- 9 b. Mother's request that the Court make a finding that Mother has an inability to comply
- 10 with the identified portions of the Judgment is denied. The Court does not find that
- 11 Mother has an inability to comply with the identified portions of the Judgment.
- 12 c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404
- 13 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
- 14 d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to
- 15 review Mother's compliance with this order and to determine whether to grant Mother's
- 16 request for a stay.
- 17 9) On 4/24/2026, Mother filed a Declaration stating she is unable to comply with the Court's order
- 18 requiring an undertaking because she lacks access to sufficient liquid funds.
- 19 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day
- 20 requesting that the Court reduce or permit partial and or installments on the undertaking pending
- 21 appeal.
- 22 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the
- 23 existing status and structure of the life insurance policies pending appellate review and the
- 24 practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the
- 25 policies may have on meaningful appellate review before those appellate issues are resolved."
- 26 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that
- 27 Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge
- 28 Wiley's Final Statement of Decision and transfer the following life insurance policies into his
- 29 name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,074.77),

1 #8890 (with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of
2 \$6,381.64). However, it appears Father is not asking for the full cash surrender value of these
3 policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy
4 #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net
5 amount Mother owes Father.

6 13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were
7 originally funded using money connected to property sale proceeds from China involving her
8 adult daughter Shiyi Yang. Mother states that because the policies were funded using money
9 connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies
10 be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087.
11 Mother states the policies should not be accessed, withdrawn against, surrendered, depleted,
12 transferred, or otherwise materially altered before completion of the appeal. Mother states,
13 "Preservation of the existing condition and structure of the policies is necessary to maintain the
14 status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and
15 third-party interests remain unresolved."

16 14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the
17 home in China whose proceeds were used to purchase the life insurance policies belonged to
18 Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership
19 of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of
20 Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his
21 request that the identified policies be transferred to him.

22 15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny
23 Father's requests, preserve the disputed policies, and maintain the status quo pending appellate
24 review.

25 16) At the prior 5/28/2026 hearing (per the Findings and Order After Hearing filed 6/8/2026), the
26 Court adopted its Tentative Ruling without objection and ordered the following:

- 27 a. On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this
28 proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a
29 Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026,

1 Mother must: (a) have Ms. Yang served with a copy of the Summons as well as a copy of
2 the Findings and Order After Hearing for the 5/28/2026 hearing date using a service
3 method set forth in California Rules of Court, rule 5.68 and (b) file a Proof of Service of
4 Summons (POS-010) showing compliance with this order and serve a copy of the POS-
5 010 on Father's attorney.

6 b. Ms. Yang is precluded from transferring ownership of or making any changes to
7 TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is
8 also precluded from borrowing against, withdrawing, or transferring any of the cash
9 surrender values of these plans. In other words, TransAmerica life insurance policies
10 ending in #8573, #8890, and #7087 are hereby frozen.

11 c. As soon as possible, Father shall have a copy of the Findings and Order After Hearing for
12 the 5/28/2026 hearing date served on the appropriate TransAmerica representative to
13 inform TransAmerica of this order and he shall also file and serve a Proof of Service
14 evidencing service of this order.

15 d. A review hearing was set for Thursday, 7/9/2026 to review the parties' compliance with
16 the above orders and to determine whether to grant Mother's request for a stay.

17 17) Due to the Court's oversight, the Summons (Joinder) was not issued until 6/23/2026.

18 18) On 6/29/2026, Father filed an Update Declaration. Father states his attorney emailed a copy of the
19 Summons (Joinder) to Ms. Yang. Father also states that TransAmerica told his attorney that it
20 cannot "follow the court order" because "the request must come from the owner of each life
21 insurance policy." Father's attorney asked Mother and Ms. Yang to "submit a freeze on any type
22 of transactions of their respective TransAmerica accounts since Petitioner is not allowed to."
23 Father states he is unaware if anything has been submitted to TransAmerica by Mother or Ms.
24 Yang. Father asks the Court to deny Mother's motion to stay.

25 19) On 6/29/2026, Mother filed a Declaration stating the appeal remains pending. Mother states,
26 "preservation of the current status of the disputed life insurance policies remains necessary
27 pending completion of appellate review."

28 20) On 7/6/2026, Mother filed another Declaration stating she was unaware the Summons (Joinder)
29 had been issued until 6/29/2026. Mother states she personally handed the documents to Ms. Yang

on 6/29/2026. Mother states she later learned she is not permitted to personally serve the Summons on Ms. Yang, and so Mother had a third party mail the documents to Ms. Yang. Mother then subsequently realized that service by mail requires a signed Notice and Acknowledgment of Receipt, and so on 7/3/2026, Mother had a third party mail the Summons (Joinder), Findings and Order After Hearing, Notice and Acknowledgment of Receipt, and a postage-paid return envelope to Ms. Yang. However, as of 7/3/2026, she has not received a signed Notice and Acknowledgment of Receipt from Ms. Yang and so she has not filed a Proof of Service as required by the Court's prior order. Mother also states that she tried contacting the ACCESS Center for assistance but they did not respond to her inquiries.

B. Findings and Order

- 1) The Court finds Ms. Yang has not yet been properly served with the Summons and Findings and Order After Hearing (filed 6/8/2026). In light of the Court's delayed issuance of the Summons (Joinder), good cause exists to extend the deadline for service and to continue this hearing briefly to **Thursday, 7/30/2026 at 9:00 AM in Dept. 404** to review the parties' compliance with the orders outlined below and to determine whether to grant Mother's request for a stay.
- 2) If Ms. Yang does not provide the Notice and Acknowledgment of Receipt of the Summons by 7/10/2026, Mother shall have a third-party age 18 or older perform personal service of the Summons and the Findings and Order After Hearing (filed 6/8/2026) on Ms. Yang. If Mother is unable to complete personal service, Mother shall have a third-party age 18 or older effectuate service using another method authorized by California Rules of Court, rule 5.68.
- 3) Mother shall also have a copy of the Findings and Order After Hearing for the 7/9/2026 hearing served on Ms. Yang by a third-party age 18 or older.
- 4) In advance of the next hearing date, Mother shall file a Proof of Service of Summons (POS-010) showing compliance with this order and serve a copy of the POS-010 on Father's attorney.
- 5) The following order remains in full force and effect: Ms. Yang is precluded from transferring ownership of or making any changes to TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is also precluded from borrowing against, withdrawing, or transferring any of the cash surrender values of these plans. In other words, TransAmerica life insurance policies ending in #8573, #8890, and #7087 are hereby frozen.

- 1 6) In advance of the next hearing date, Mother and/or Shiyi Yang, to the extent either is the owner of
2 TransAmerica life insurance policies ending in #8573, #8890, and #7087, shall execute and
3 transmit to TransAmerica a Letter of Instructions directing TransAmerica to place an immediate
4 freeze on those policies, prohibiting any transfer of ownership, withdrawal, loan, or any other
5 transaction affecting the policies or their cash surrender values without further order of this Court.
6 Mother and Ms. Yang shall thereafter serve on Father's attorney a copy of the Letter of
7 Instructions as well as proof of transmission of the Letter of Instructions to TransAmerica.
8 7) At least 10 calendar days prior to the next hearing date, the parties shall file and serve update
9 declarations (not to exceed 5 pages in length, not including exhibits).
10 8) The Court will prepare the Findings and Order After Hearing.
- 11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ADRIANA CERROS,

Petitioner

VS.

CARLOS AGUIRREZ FLORES,

Respondent

) Case Number: FDI-24-800705

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ORDERS PURSUANT TO FAM. CODE SECTION 2107

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Adriana Cerros (Wife) and Respondent Carlos Flores (Husband) married on 3/27/1997. The parties agree they separated on 9/16/2023, for a marriage of 26 years and 5 months. The parties have no minor children. Both parties are self-represented, although Wife has a consulting attorney, Kristina Asuncion.
- 2) On 11/8/2023, in related Case No. FDV-23-817110, Wife obtained a Domestic Violence Restraining Order After Hearing against Husband. The restraining order expires on 11/8/2026.
- 3) On 3/4/2025, Petitioner filed a Declaration Regarding Service of Preliminary Declaration of Disclosure.
- 4) There have been no orders made in the FDI case to date.
- 5) On for hearing is Wife's Request for Order filed 5/14/2026 asking that the Court grant Wife's voluntary waiver of Husband's Preliminary and Final Declarations of Disclosure and to preclude Husband from presenting evidence on issues that should have been covered in those declarations. Wife further requests that the Court enter her proposed Judgment of Dissolution. Wife states that

on 3/24/2025, she received a copy of Husband's Response to the Petition, Community Property Declaration, and Income and Expense Declaration, but the packet "did not include a complete set of documents in support of the statements in the community property declaration." Wife states that, to date, Husband has not served his completed and signed Preliminary Declaration of Disclosure. Wife writes, "I believe he is doing this to control me and because he believes that I will go back to him." Wife included a declaration of her consulting attorney Kristina Asuncion wherein Ms. Asuncion states that Husband insists he has already completed financial disclosures and has refused to provide the requested supporting documents.

6) Per the Proofs of Service filed 5/14/2026 and 6/17/2026, Wife's Request for Order and the Tentative Ruling Instructions were mailed to Husband on 6/15/2026.

7) Husband did not file a Responsive Declaration.

B. Findings and Order

1) The Court will give Husband a final opportunity to present the missing documents. No later than **Friday, 7/24/2026**, Wife shall present to Husband a list of documents that are missing from Husband's Preliminary Declaration of Disclosure as required by Family Code section 2104. No later than **Friday, 8/21/2026**, Husband shall provide to Wife the documents requested by Wife.

2) The hearing on Wife's Request for Order filed 5/24/2026 is continued to **Thursday, 10/1/2026 at 9:00 AM in Dept. 404.**

3) At least 20 calendar days prior to the next hearing date, Wife shall file and serve a declaration (not to exceed 5 pages in length, not including exhibits) to which she attaches a true and correct copy of the list of documents she requested that Husband provide. Wife shall also provide an update to the Court regarding whether Husband provided the requested documents and which documents, if any, are missing.

4) At least 10 calendar days prior to the next hearing date, Husband may file and serve a declaration (not to exceed 5 pages in length, not including exhibits) wherein he responds to any new declaration filed by Wife.

5) Wife's request that the Court enter her Judgment of Dissolution at this juncture is denied. If the parties are unable to reach a stipulated agreement, either party may file an At Issue Memorandum to request a Mandatory Settlement Conference and future trial date.

6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JANA SABO,

Petitioner

VS.

ERIC OSMOLINSKI,

Respondent

) Case Number: FDI-25-801763

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, SPOUSAL OR PARTNER SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jana Sabo (Mother) and Respondent Eric Osmolinski (Father) married on 2/19/2011.
Mother contends the parties separated on 8/1/2025, for a marriage of 14 years and 5 months.
Father states the date of separation is in November 2023, for a marriage of 12 years and 9 months.
The parties have three minor children, Jacob (DOB: 7/25/2011, age 14), Julian (DOB: 3/21/2014,
age 12), and Lucas (DOB: 2/14/2016, age 10). Mother is represented by attorney Joseph
Willmore. Father is represented by attorney Katy Gasparini.
- 2) There is currently a trial pending before the Honorable Judge Gold in related Case No. FDV-26-
819044 on Mother's Request for Domestic Violence Restraining order to protect herself and the
minor children against Father. The first day of trial occurred on 7/1/2026. There are two days of
trial remaining, 7/22/2026 and 7/28/2026.
- 3) A 1st Amended Temporary Restraining Order (TRO) in was filed 4/29/2026 in the related FDV
case which protects Mother and the parties' minor children against Father. Among other orders,

1 the TRO requires Father to move out of the residence located at 2442 Larkin St. San Francisco,
2 CA 94109, grants Mother temporary legal and physical custody of the children, and grants Father
3 unsupervised visitation time with the children on alternate weekends from Friday 7 PM to Sunday
4 7 PM.

5 4) Now on for hearing is Mother's Request for Order filed 4/17/2026 seeking guideline child
6 support, temporary guideline spousal support, and \$50,000 in need-based attorney's fees and
7 costs. Mother states the parties' marital standard of living was in the top 1%. Mother states Father
8 earns \$1.7 million annually as an oral surgeon whereas she earns \$573,428 annually as a self-
9 employed dentist. Mother states she currently cannot work because Father dislocated her jaw and
10 knocked out a tooth and her jaw is wired shut.

11 5) On 3/27/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48
12 years old. Mother estimates that Father earns \$141,941 per month (i.e. \$1,703,292 annually)
13 based on her personal knowledge of work performed as an oral surgeon as well as her personal
14 knowledge of K-1s and prior tax returns. Mother states she earns \$47,785 per month (i.e.,
15 \$573,420 annually) in net self-employment income as a dentist. Mother states that her monthly
16 expenses total \$62,930, which includes \$21,00 per month for mortgage, \$8,800 per month for au
17 pair, \$2,400 per month for groceries, \$9,500 per month for school tuition, and \$6,600 for camps
18 and extracurricular activities for the children plus special services. Mother states that she has
19 \$50,000 in cash savings, \$40,000 in easily saleable investments, and her estimate of the total
20 value of the marital estate is \$8 million. Mother lists the following debts: \$16,000 for Honda,
21 \$28,000 for Porsche, and \$45,000 in credit card debt. Mother attached her K-1s for 2023 and
22 2024. Mother states that she has paid her attorney \$14,500 to date using savings and that she does
23 not currently owe any amount to her attorney.

24 6) On 5/19/2026, Mother's attorney Joseph Willmore filed a declaration stating that he has 13 years
25 of experience as a family lawyer, is a Certified Family Law Specialist, and he charges \$525 per
26 hour. Mr. Willmore states Mother has incurred \$11,197.40 in fees and costs thus far and he
27 anticipates an additional \$50,000 in fees including multiple hearings on the restraining order,
28 child custody, spousal support, issues concerning occupancy and sale of the marital residence,
29

1 meet-and-confer efforts, review of responsive pleadings, correspondence, preparing for
2 hearing(s), hearing(s), evidentiary hearing(s), trial, preparing orders and Judgment.

3 7) On 6/25/2026, Father filed a Responsive Declaration asking that the Court deny or reserve
4 jurisdiction on temporary spousal support until Mother has provided current profit and loss
5 statements, balance sheets, and related business records for her two dental practices. Father states
6 the Court should reserve jurisdiction on child support because custody and parenting time will
7 likely change after the domestic violence proceedings conclude on 7/28/2026. Father states the
8 Court should deny Mother's request for attorney's fees because she has not demonstrated need or
9 a meaningful disparity in access to funds. Father states that he is currently paying \$21,500 per
10 month for carrying costs for the family home where Mother exclusively resides with the children.
11 Father also states that Mother omitted mention of the \$8,500 per month she receives from IHHS
12 as the caregiver of their special needs child Lucas.

13 8) On 6/26/2026, Father filed an Income and Expense Declaration. Father states that he is 48 years
14 old. Father estimates that Mother earns \$56,285 per month (i.e. \$675,420) based on the \$47,785
15 per month that Mother reports earning plus "\$8,500 IHHS income not disclosed." Father states
16 that the parties have three properties (two in Hawaii and one in Las Vegas) that generate a loss
17 each month. Father states that he earns \$104,333 in net self-employment income per month as an
18 oral and maxillofacial surgeon. Father states that his monthly revenue decreased over the past 12
19 months by \$25,000 to \$30,000 per month due to "changes in ownership, patient flow, and
20 referrals at multiple dental offices where I practice." Father states that he has \$9,000 in cash
21 savings, \$563,000 in easily saleable investments, and the parties own \$8.5 million in equity in
22 various real properties. Father states his monthly expenses total \$82,295, which includes \$21,500
23 for mortgage for the family residence, \$18,000 for rent for himself, \$3,500 in anticipated
24 childcare, and \$26,000 for personal expenses charged to his credit card. Father states he has paid
25 \$17,810 to his attorney to date using "earnings" and he still owes his attorney \$500.

26 9) On 7/7/2026, Mother filed a Reply Declaration reiterating her original requests for order, with
27 support retroactive to 4/1/2026. Mother requests that the Court use \$141,941 for Father's monthly
28 net self-employment income in a support calculation. Mother states the domestic violence trial is
29 anticipated to be four days in length and is "not scheduled to conclude until October 2026."

1 Mother states Father has made no voluntary support payments and has contributed “nothing”
2 towards expenses for childcare (au pair), private school tuition, extracurricular activities, camps,
3 and special services, which Mother states total \$29,800 per month. Mother states that Father
4 purchased a new home in Hawaii on 4/26/2026 with a purchase price of \$1.9 million, with a
5 \$700,000 down payment, which Mother states is a breach of Father’s fiduciary duty to the
6 community. Mother also states Father failed to attach a “single K-1” to his Income and Expense
7 Declaration and only provided a “very deficient document that he purports to be his Profit & Loss
8 Statement” which covers a mere 5 month period between January and May 2026. Mother also
9 states Father failed to provide a balance sheet. Mother states that “officer salary” (\$80,000)
10 should be added back to Father’s income as well as a \$5,502 for “ask my accountant” because it
11 is “not a valid deduction.” Mother states that her most recent Income and Expense Declaration
12 provides three years of K-1s and her most recent P&L. Mother attached to her Reply Declaration
13 a K-1 for Father for 2024 which Mother states shows Father’s “actual income of \$141,931.”

14 10) On 7/7/2026, Mother filed an updated Income and Expense Declaration which now specifies that
15 Father has paid the mortgage on the marital home (where Mother exclusively resides with the
16 children) of \$21,000 per month since March 2026. Mother also states that she has now paid her
17 attorney \$58,000 using savings, income, and credit. Mother now attaches a K-1 for 2025, a
18 balance sheet for 2025, and a Profit and Loss Statement for 2025. Mother also attaches earnings
19 statements from IHSS which show \$46,340.75 in total net pay as of 5/31/2026 (i.e., \$9,268 per
20 month).

21 **B. Findings and Order**

22 1) The Court finds good cause to continue the hearing on Mother’s Request for Order filed
23 4/17/2026 to **Thursday, 8/27/2026 at 9:00 AM in Dept. 404** for the following reasons:

- 24 a. The domestic violence trial is currently scheduled to end on 7/28/2026, which may
25 impact timeshare.
- 26 b. Neither party filed a Statement of Support Calculations, as required by San Francisco
27 Local Rule 11.7(A)(2)(b)
- 28 c. Mother provided new substantive information in her pleadings filed on 7/7/2026
- 29 d. The Court needs additional information for Father.

- 1 2) At least 20 calendar days prior to the next hearing date, Father shall file and serve an updated
2 Income and Expense Declaration which includes as attachments his balance sheets for 2024
3 and 2025, K-1 for 2025, and an updated Profit and Loss Statement for 2026.
- 4 3) At least 10 calendar days prior to the next hearing date, both parties shall file and serve a
5 Statement of Support Calculations which shall include as an attachment a proposed XSpouse
6 calculation. Father shall address in his Statement of Support Calculations Mother's request
7 that "officer salary" be added back to Father's income as well as fees for "ask my
8 accountant."
- 9 4) Between now and the date of the new hearing, Father shall continue to pay for the carrying
10 costs for the marital residence where Mother resides and the parties shall share equally the
11 following expenses for the children that are currently due or that become due for payment
12 between now and the date of the new hearing, subject to reallocation at the next hearing date:
13 a. Private school tuition;
14 b. Extracurricular activities;
15 c. Camps;
16 d. Childcare so either party can work (including au pair).
- 17 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 18 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing –
19 within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the
20 other party/counsel for approval, and follow the procedures set forth in CA Rules of Court,
21 Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit
22 the proposed order after hearing directly to the court. Failure to submit the order after
23 hearing within 10 days may allow the other party to prepare a proposed order and submit it to
24 the court in accordance with CA Rules of Court, Rule 5.125(d).
- 25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WENJING MITSCHA,

Petitioner

VS.

ANDREW EDWARD MITSCHA,

Respondent

) Case Number: FDV-25-818435

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MOTION FOR MY PARENTS FOR A VISITATION WITH MY SON;
OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Wenjing Mitscha (Mother) and Respondent Andrew Mitscha (Father) have one minor child together, Edward (DOB 02/06/2022, age 4). Mother has sole legal and physical custody of Edward.
- 2) On 9/3/2025, Father filed a Request for Order for a Modification of a Domestic Violence Restraining Order (DVRO) that was issued against him so that he would be allowed unsupervised visitation with Edward on Saturdays from 8AM to 6PM.
- 3) On 10/13/2025, the parties appeared and were referred to Family Court Services for mediation with a return date of 1/13/2026.
- 4) On 12/30/2025, Mother filed a Memorandum of Points and Authorities stating that pursuant to a 12/18/2024 order after hearing of her DVRO request, Father is to have supervised visits with Edward for one hour in San Francisco every two weeks and he is to pay 100% of the cost.

- 1 5) At the 1/13/2026 hearing, the Court (Judge Pro Tem Martin Triano) ordered, among other things,
2 that Father shall have supervised visits through Rally Family Visitation Services (Rally) for one
3 hour every other weekend subject to Rally's availability, with Father to pay 100% of the Rally
4 costs. The Court ordered that Father may communicate with Mother's counsel via email
5 regarding family law matters only. The Court set a review hearing for 4/28/2026.
- 6 6) On 4/13/2026, Father filed a declaration stating he is currently engaged in anger management
7 classes and would like his parents to supervise his visits with Edward. On 4/20/2026, Mother
8 filed declarations regarding communications from Father. Mother stated that there is a DVRO and
9 14 San Francisco criminal matters pending against Father for his repeated violations of the
10 DVRO.
- 11 7) The parties appeared on 4/28/2026 before Judge Donna Petre. Father left the courtroom during
12 the hearing, and the matter was continued to 7/9/2026.
- 13 8) On 6/29/2026, Father filed a request for his parents to visit Edward. He states he completed the
14 26-hour anger management course and attached his certificate of completion to his declaration.
15 Father states that he registered with Rally and received confirmation on 5/29/2026 that Rally had
16 his paperwork.
- 17 9) On 6/30/2026, Mother filed a Supplemental Attorney Declaration of attorney Karine Cargo, who
18 states that Father has made many disparaging comments to her and has made racist comments at a
19 prior hearing. On 6/30/2026, Mother's attorney, Mia Ragent, filed a Declaration of Counsel in
20 Support of Mother's update, stating that she has witnessed Father's abusive behavior and that his
21 completion of an anger management program and his alleged rehabilitation is inconsistent with
22 his behavior.
- 23 10) On 7/1/2026, a Rally coordinator submitted a case update stating that Father contacted Rally on
24 4/29/2026 and that Rally received Father's intake documents on 5/27/2026. Rally reported that
25 because both parties had not completed the intake interview and orientation and 6 months had
26 passed since the Rally order, the case is currently inactive and the parties are required to complete
27 a new intake process before visits can be scheduled or the parties can be placed on the waitlist, as
28 needed.
29

1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in the child's best interests to maintain the current custody and parenting time
7 order without modification. To restart the Rally process, the parties are ordered to contact Rally
8 on or before 7/12/2026 to begin the process of completing their intake papers, intake interview,
9 and orientation. The parties shall provide to Rally as many available dates and times as they can
10 for visits so that they will have a better chance to obtain a visitation day/time. The matter is set
11 for a review hearing on the status of Rally visits on **11/10/2026 at 9AM in Department 404** to
12 give sufficient time for the visits to begin. At least 10 days before the review hearing, the parties
13 shall file and serve update declarations informing the Court how visits are going and what their
14 requests are relating to custody and parenting time.
- 15 3) Mother's attorney shall prepare the Findings and Order After Hearing.
- 16 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
- 23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CASEY NOELLE NUCKOLS FLORIANI,

Petitioner

VS.

NICCOLO TORU FLORIANI,

Respondent

) Case Number: FDV-25-818707

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video in Department 404. Mother shall be prepared to explain whether she will be requesting the appointment of contempt counsel.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

1) On for hearing is Respondent Niccolo Floriani (Father)'s Order to Show Cause and Affidavit for Contempt filed 5/4/2026 wherein Father alleges that Petitioner Casey Floriani (Mother) violated the Findings and Order After Hearing filed 3/2/2026 which provides Father with supervised visitation at Rally for one hour per week plus two hours of professionally supervised visitation each week. The order also provides that Father shall be solely responsible and pay all costs of the supervised visits. Father states that on 4/23/2026, he was notified by a Child First Supervised Visitation Program Director Eric Baker that Mother was cancelling the visitation set for Saturday, 4/25/2026. Father states he immediately responded that the cancellation was without his consent and unacceptable. Father states he is required to give 72 hours advance notice for cancellations; otherwise, he is charged \$327.80 for visitation by Child First and \$277.25 for an American Sign Language interpreter. Father states that on Friday, 4/24/2026, Mr. Baker emailed him stating he had communicated his request to Mother that

1 the 4/25/2026 visit remain in place. Father states that on 4/25/2026, he arrived at the Academy of
2 Science in San Francisco at 2:50 PM and he waited until 5:00 PM and Mother did not show up.
3 Supervised visitation provider Lowell Davis documented that Mother was a “no-show” and left with
4 the ASL interpreter. In addition to his request for an OSC Re: Contempt, Father requests that Mother
5 reimburse him for the \$605.06 he was charged by the visitation supervisor and the ASL interpreter
6 plus attorney’s fees and costs for bringing this OSC Re: Contempt.

7 2) Per the Proof of Service filed 6/24/2026, Mother was personally served with the OSC: Re Contempt
8 on 6/23/2026.

9 3) Mother has not filed any pleadings with respect to Father’s OSC Re: Contempt.

10 4) **The parties are ordered to appear. Mother shall be prepared to explain whether she will be**
11 **requesting the appointment of contempt counsel.**